ABIGAL MANYATI
versus
BRIAN SUNGURO

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 27 March, 21 May & 17 July 2026

Civil Trial

T Muvhami, for the Plaintiff
A R Mabhena, for the Defendant

MAXWELL J:

Background

The parties were married in terms of the then Marriage Act [*Chapter 5:11*], now the Marriages Act [*Chapter 5:17*]. The union was blessed with one minor child. On 13 November 2024, the plaintiff issued summons seeking a decree of divorce and ancillary relief. In her declaration, she averred that the marriage had broken down irretrievably and that there were no reasonable prospects of its restoration to a normal relationship. She further stated that during the subsistence of the marriage the parties did not acquire any movable or immovable property. The plaintiff proposed that she be awarded sole custody of the minor child, with the defendant enjoying virtual access through platforms such as WhatsApp, Skype, Zoom, Facebook, or any other online medium agreed upon by the parties. She also proposed that the defendant contribute maintenance of US$100 per month until the child attains the age of eighteen years or becomes self-sufficient.

The defendant entered an appearance to defend. In his plea, he contended that he had enjoyed sole custody of the minor child since January 2017 when the plaintiff emigrated. He opposed the plaintiff's proposals on custody, access, and maintenance. He sought custody of the minor child, with the plaintiff exercising access during alternate school holidays, and proposed that the plaintiff contribute maintenance of US$650 per month. He denied that the

marriage had irretrievably broken down. She maintained that she had consistently contributed towards the child's welfare and maintenance.

At the joint pre-trial conference, the parties agreed that the marriage had broken down irretrievably and that there was no property to be shared. The following issues were referred to trial;

1. Who should be awarded sole custody of the minor child?
2. How should the non-custodial parent exercise access rights?
3. What quantum of maintenance should the non-custodial parent contribute?

Plaintiff's Case

The plaintiff testified that she relocated to Australia in 2017 to pursue further studies, with the intention of securing a stable future for the family. She emphasised that her relocation was not intended to abandon the minor child but was a necessary step to establish a sustainable life for the child. She stated that the parties had agreed that the defendant would later join her with the child, but the visa applications were rejected as she was on a student visa. She stated that when she went to Australia, the minor child was in the custody of her mother-in-law until they agreed to take the child to Mr and Mrs Mupesa.

She produced evidence of monetary remittances and tendered her payslip, showing that she is employed as a nurse in Australia, earning between 50.000 and 70.000 Australian dollars per annum. She testified that she is in lawful permanent employment and holds a valid immigration status permitting her to reside in Australia with the minor child.

The plaintiff averred that the defendant wrongfully assumed custody of the minor child. She alleged that the defendant removed the child from Brynston Junior School without the consent of her relatives, who had been caring for the child and without a court order. She further alleged that the defendant attempted to travel to France with the minor child without her consent and that an affidavit purportedly deposed to by her had been fraudulently submitted in support of the visa application. She maintained that she is focused on creating a stable environment for the child and prayed for sole custody, with reasonable virtual access rights for the defendant. She testified that she wanted sole custody of the minor child since the child is a girl, she is still young and needs her guidance as a mother. She further testified that she is now able to look after the child. She offered to meet the child's travel expenses during school holidays and sought maintenance of US$100 per month from the defendant.

Under cross-examination, she conceded that she is not yet a permanent resident in Australia, and that her visa, which expires in October 2027, is subject to renewal based on continued employment and compliance with immigration requirements. She further conceded that she stopped contributing towards the welfare of the child from the time when the defendant took the child from school and assumed custody. She also stated that there will be a need for a process of re-familiarisation before the child resides with her.

Agatha Nyanhira, an administrator at Brynston Junior School, testified on behalf of the plaintiff. She confirmed that she knew the plaintiff as the minor child's mother. She stated that the child was enrolled at Brynston Junior School in 2021 by Mr. Mpesa, who identified the plaintiff as the child's mother. She further confirmed that the defendant was recorded as the child's father on the birth certificate. She testified that on one occasion, the defendant collected the child from school without notifying the relatives who had been caring for her. The child was taken abruptly, without her clothing, school uniforms, or other personal belongings. Ms Nyanhira further stated that a letter allegedly originating from Brynston Junior School and used in support of the French visa application was fraudulent, as it had not been issued by the school.

Defendant's Case

The defendant testified as the sole witness in his case. He stated that the plaintiff relocated to Australia in 2017, leaving the minor child in Zimbabwe with his mother. He explained that the child later resided with the plaintiff's relatives. He denied forcibly removing the child from Bryanston Junior School, asserting that a formal handover was effected through the school, which replaced the uncle's details with his own, thereby recognising him as the responsible parent. He acknowledged that at one stage the plaintiff was solely responsible for the child's welfare, but maintained that he later assumed responsibility, meeting the child at school and providing for her needs. He testified that he communicated with the plaintiff both before and after assuming custody.

The defendant stated that attempts to relocate with the child to Australia were twice denied and that he could not join the plaintiff abroad. The defendant emphasised that he has never denied the plaintiff or her relatives access to the child, but he mentioned that the plaintiff has not visited the child for the past eight years. He averred that it is not in the child's best interests to relocate to Australia, citing the need to preserve cultural values and stability. He stated that he has arranged a stable caregiving structure for the child, including the assistance of a maid who caters for the child's daily needs and welfare. He pointed out

that the plaintiff does not hold permanent residency in Australia and that her visa expires in 2027. He denied ever abusing the child and contended that he should be awarded sole custody, with the plaintiff exercising access.

The defendant rejected the plaintiff's proposal of virtual access, asserting that minors are restricted from social media platforms under Australian law. He further contended that if the plaintiff remarries, there would be a risk of abuse to the minor child by her partner. Under cross-examination, he conceded that the same risk could exist with his own partner, but maintained that no reports of abuse had arisen during his custody of the child.

ANALYSIS

The issues referred to trial are custody, access and maintenance of the minor child. In resolving these, the court is guided by section 81(2) of the Constitution of Zimbabwe, which provides that the best interests of the child are paramount in every matter concerning the child.

Who should be awarded sole custody of the minor child?

In Zimbabwe, custody cases are primarily governed by the Guardianship of Minors Act [*Chapter 5:08*]. Custody is not a reward for either parent but a mechanism to secure the child's welfare. In custody matters, if one parent is awarded custody, the other parent usually will be given access rights to spend time with the children. In *Mukundu* v *Chigumadzi* HH818/15 at p 5 the court stated that:

> "It is trite that any determination which affects the rights of a child should be guided by the child's best interests"

In the case of *Mackintosh* v *Mackintosh* SC37/18 at p 15 the Supreme Court enunciated as follows:

> "The need to have due regard to the best interests of the minor children has been part of our law for some time now. Indeed, with the advent of the new Constitution, Section 81(2) thereof has codified this position and provides that in every matter concerning a child, it is the child's best interests that are paramount and that minor children are entitled to protection, particularly by the High Court as the upper guardian of the rights of the children"

In casu it is important to note that the High Court as the upper guardian of the children should uphold the best interests of the child. The court in the case of *McCall* v *McCall* 1994 (3) SA 201 (C) at page 204-205 highlighted the factors which are relevant in canvassing the best interests of the child principle, it stated that:

> "In determining what is in the best interests of a child, the Court must decide which of the parents is better able to promote and ensure his physical, moral, emotional and spiritual

welfare. This can be assessed by reference to certain factors or criteria which are set out hereunder, not in order of importance, but also bearing in mind that there is a measure of unavoidable overlapping and that some of the listed criteria may differ only as to nuance. The criteria are the following:

a. The love, affection and other emotional ties which exist between parent and child and the parent's compatibility with the child;
b. The capabilities, character and temperament of the parent and the impact thereof on the child's needs and desires;
c. The ability of the parent to communicate with the child and the parent's insight into, understanding of and sensitivity to the child's feelings;
d. The capacity and disposition of the parent to give the child the guidance which he requires;
e. The ability of the parent to provide for the basic physical needs of the child, the so called "creature comforts" such as food, clothing, housing and the other material needs – generally speaking, the provision of economic security…."

In *Makumbe* v *Chikwenhere* 2003 (1) ZLR 372 (H) at p 375 the court reiterated that:

"The court has to take into account the child's need for stability and continuity, not only in relationships with parents, but also in physical surroundings, school, friends, brothers and sisters and relatives"

In light of the above court's sentiments, the court must weigh the stability and continuity of the child's current environment against the disruptive impact of relocation. The evidence establishes that the plaintiff relocated to Australia in 2017. While the court accepts that her departure was intended to build a sustainable future for her family rather than to abandon the minor child, the inescapable reality is that she has been physically absent from the child's life for approximately nine years. Conversely, the minor child has been raised in Zimbabwe and has been under the custody of the defendant and extended family since 2017. The child is integrated into the defendant's current household, where she resides with the defendant, his new partner, and their infant child. She is settled in a stable educational environment. Under cross-examination, the plaintiff conceded that there is a need for re-familiarisation with the child, which shows that the present emotional bond between her and the minor child is not sufficient to justify immediate relocation and custody.

The court notes with serious concern the irregularities surrounding the defendant's assumption of custody. The independent testimony of Ms. Agatha Nyanhira, an administrator at Brynston Junior School, strongly corroborated the plaintiff's assertions. Ms. Nyanhira confirmed that the defendant abruptly removed the minor child from school without her personal belongings and bypassed the relatives who had been caring for her. Furthermore,

Ms. Nyanhira proved that a fraudulent school letter was used to support an unauthorized application for a French visa for the child.

Additionally, under cross-examination, the plaintiff admitted that she stopped contributing to the child's upkeep from the time the defendant took the child. This action demonstrates a highly irresponsible tendency by the plaintiff and uses the minor child as a pawn in a marital dispute. What the plaintiff is doing was cautioned against by Honourable MUNANGATI-MANONGWA J in the case of *Machacha* v *Mhlanga* HH 185/23 at p 1, wherein she said that;

> "As parents tussle over custody of children they seem to be oblivious that the best interests of the children reign supreme over the parents' preferences. This court as the upper guardian of children will ensure that the duty placed upon it by the Constitution of Zimbabwe, and indeed the dictates of regional conventions such as the African Charter on the Rights and Welfare of the Child and international instruments such as the United Nations Convention on the Rights of the Child, being to safeguard the best interests of the children shall be undertaken without hesitation. Children are not chattels to be exchanged at will, held and used as pawns for parents' selfish ends either to settle scores or score a victory. Children have rights and are entitled to their dignity and humane treatment"

The primary function of this court as upper guardian of minor children is not to punish the defendant for past misconduct, but to safeguard the minor child's present and future stability. Courts are inherently reluctant to disrupt a child's long-standing, settled environment unless compelling, adverse circumstances exist. Uprooting the minor child from her familiar social, cultural, and educational environment in Zimbabwe to relocate to Australia, where the plaintiff admits she does not hold permanent residency and her visa is temporary and subject to renewal in October 2027, would introduce severe instability. Therefore, balancing the defendant's continuous care against the prolonged physical absence and precarious immigration status, the best interests of the child dictate that custody be awarded to the defendant.

How should the non-custodial parent exercise access rights?

Access matters are to be decided by considering all the facts of the matter, having regard to the best interests of the child. In *Bottger* v *Bottger* HC-H 405-82, at p 7, the court held that:

> "The object of access is to nurture the affection and companionship between non-custodian parent and child, and while on the one hand it should not be of such frequency as to trespass on the control and direction of the child's daily life that is vested in the custodian parent, on the other it should not be so confined as to stultify the continuing link between child and non-custodian parent."

The plaintiff needs to be awarded access rights to the minor child, to maintain companionship and bond between the child and the plaintiff as the mother. Both parents should have a normal relationship with their child. The benefits of such a relationship are explained in the case of *W* v *W* 1981 ZLR 243, at p 247, wherein the court held that:

> "The natural affinity and emotional bond and attachment between parent and child are generally irreplaceable and an accepted fact of life. Such an association benefits and promotes a child's emotional security and feelings, normality, whilst the award of a child's custody to a third-party place him in a distinctly unusual or abnormal category. The custody of a child should vest in one parent whilst the non-custodial parent enjoys full access rights so as to have a bond with their child."

The plaintiff resides and works in Australia, physical access must be structurally tailored to account for geographical distance. The plaintiff should have physical access during alternate school holidays as agreed to by the parties, provided that the plaintiff bears the child's travel costs. However, given that the plaintiff does not hold permanent residency in Australia and her current visa is due to expire in October 2027, the court must safeguard the child against potential immigration instability. Consequently, any physical access that involves the minor child traveling to Australia is strictly conditional upon the plaintiff providing verifiable proof of the successful renewal or extension of her Australian work permit or visa beyond October 2027.

Furthermore, physical holiday access alone is insufficient to bridge a nine-year physical separation. It must be supplemented by modern technology. While the defendant raised concerns regarding social media restrictions under Australian law, this court notes that regular video communication via platforms like WhatsApp, Skype, or Zoom does not violate such legal frameworks and is vital to rebuilding the maternal bond. Accordingly, the plaintiff shall exercise physical access during alternate school holidays, subject to the visa verification condition outlined above and comprehensively supplemented by structured virtual access as agreed upon by the parties.

What quantum of maintenance should the non-custodial parent contribute?

The plaintiff proposed that she contribute US $100.00 per month, while the defendant sought a contribution of US $650 00 per month from her. In her evidence, the plaintiff asserted that she has consistently contributed towards the child's welfare, as evidenced by the

monetary remittances she produced. Conversely, the defendant testified that the plaintiff stopped contributing towards the child's upkeep from the moment the divorce proceedings commenced.

It is settled law that the amount of maintenance payable by each parent is determined by their respective means and resources. Maintenance must be assessed with reference to the child's reasonable needs and the means of the parents. See *Chiomba* v *Chiomba* 1992 (2) ZLR 197 (S). Furthermore, Section 6(4) of the Maintenance Act [*Chapter 5:09*] directs the court to have regard to the general standard of living of the responsible person and the dependent, including their social status, the means of the responsible person and the dependent the number of persons to be supported and whether the dependent or any of their parents can work and if so, whether they should do so.

In the case of *Kasu* v *Kasu* HH 106/18 at p 9, the law on maintenance was aptly set out as follows:

> "On maintenance payable for the children, the needs of the children have to be balanced against the means of the person responsible for payment of maintenance. It is however the obligation of both parents to maintain their children each according to their means and at the same time trying to ensure that the children enjoy the quality of life they were accustomed to before the divorce."

Applying these principles to the present matter, the court must balance the minor child's reasonable needs with the parents' respective means. The plaintiff confirmed in her evidence that she is employed as a nurse in Australia, earning between 50.000 and 70.000 Australian dollars per year. This translates to a substantial income relative to Zimbabwean standards. On the other hand, the defendant is employed locally in Zimbabwe. He has de facto custody of the minor child and supports an additional family, which includes another minor child. The defendant's request of US $650.00 is excessive, but the plaintiff's proposal of US $100.00 is inadequate given her earning capacity and the child's welfare.

It is the court's finding that the parties should contribute equitably towards the maintenance of the minor child based on their respective resources. It is in the best interest of the child that the defendant pay for the minor child's medical aid. Since the defendant is physically exercising custody and directly providing for the child's accommodation and day-to-day living expenses, the plaintiff must leverage her superior earning capacity to cover the core institutional costs of the child's upbringing.

Consequently, a fair and balanced cash contribution reflecting the plaintiff's earning capacity is US$200.00 per month. In addition to monthly cash maintenance, the plaintiff shall cover the minor child's school uniforms and pay 50% of school fees at a school mutually agreed upon by both parents. Both parents shall contribute equally towards buying casual clothes for the child.

DISPOSITION

1. A decree of divorce be and is hereby granted.
2. Custody of the minor child, namely A R Sunguro born on 27 December 2015, be and is hereby awarded to the defendant until the child attains the age of majority (18 years) or becomes self-supporting.
3. The defendant shall pay medical aid, provide suitable accommodation and meet the day-to-day living expenses of the minor child.
4. The plaintiff shall exercise her access rights to the minor child as follows:
    a. Physical access during alternate school holidays, provided that the plaintiff bears all travel and repatriation costs for the minor child and provided further that the plaintiff's right to physical access involving the travel of the minor child outside the borders of Zimbabwe shall be suspended and only become exercisable upon the plaintiff providing the defendant with written, verifiable proof of the successful renewal or extension of her Australian residency visa or permit beyond October 2027.
    b. Regular virtual access, uninterrupted video and audio communication via online platforms such as WhatsApp, Skype, Zoom or any other mutually agreed digital medium, to be exercised at reasonable times.
5. The plaintiff shall contribute towards the maintenance of the minor child as follows:

a. Payment of US$200.00 (two hundred United States Dollars) per month, payable in cash or at the prevailing inter-bank rate on the date of payment, into a bank account nominated by the defendant, until the child attains the age of majority or becomes self-supporting.
b. Payment of 50% (fifty percent) of the school fees direct into the school account within seven days of being provided with the official school invoice or fee breakdown by the defendant. The defendant is ordered to transmit such invoices to the plaintiff within three days of their issuance by the school.
c. Provision of all the minor child's school uniforms.

6. The plaintiff and the defendant shall contribute equally (on a 50/50 basis) towards the purchase of casual clothing for the minor child.
7. Neither party shall remove, attempt to remove or cause the minor child to be removed from the borders of Zimbabwe without the prior written and notarized consent of the other parent or a specific order granted by this court.
8. The minor child shall remain enrolled at her current school and neither parent shall transfer the minor child to another educational institution without the prior written and mutually signed consent of the other parent.
9. Each party shall bear its own costs of suit.

MAXWELL J:…….

Muvhami Attorneys, Plaintiff's Legal Practitioners.
F Ndou Legal Practice, Defendant's Legal Practitioners